

RESEARCH END-USER LICENSING AGREEMENT

between

**Swiss Federal Research Institute for Forest, Snow and Landscape Research
represented by WSL-Institut für Schnee- und Lawinenforschung SLF**
Flüelastrasse 11, 7260 Davos Dorf, Switzerland

(hereinafter referred to as “**SLF**”)

and

(hereinafter referred to as “**Licensee**” or “**Early Adopter**”)

hereafter referred to individually or collectively as the “**Party**” or the “**Parties**”.

Preamble

SLF has developed the binary program code and QGIS Plugin named “**Multi-purpOse displacement Behavior Identifier (MOBI-DIC)**” and related documentation (collectively “SOFTWARE”). The SOFTWARE embodies and reflects certain trade secrets of the SLF and is protected by copyright law.

The SOFTWARE is a Python-based Digital Image Correlation (DIC) processing tool that computes 2D and 3D surface displacement fields from pairs of Digital Elevation Models (DEMs) or optical images using windowed DFT-based image matching, together with a QGIS (<https://qgis.org/>) plugin providing a graphical interface for parameter configuration, batch processing, result loading and visualization.

SLF develops and uses internally DIC methods since many years for research and applications aimed at the identification of displacements using different digital imagery. In this framework, SLF has developed the SOFTWARE and is interested in testing the usability of the SOFTWARE by external users.

The Licensee is interested in early adopting the SOFTWARE and SLF is willing to license the SOFTWARE to the Licensee, for research use on the terms and conditions of this agreement (“Agreement”).

1 EVALUATION PERIOD

The EVALUATION PERIOD starts on the date of delivery of the SOFTWARE and ends on 31 December 2026 (see Article 7).

2 COMPENSATION AND PAYMENT

For the EVALUATION PERIOD the SOFTWARE is free-of-charge. Any use after the expiration of the EVALUATION PERIOD requires an additional agreement and may require a payment of a license fee.

3 LICENSE GRANT

SLF grants to the Licensee, a non-exclusive, non-transferable, non-sublicensable, worldwide licenses(s) to install, execute and display the SOFTWARE on devices running a validly licensed copy of the operating system for which the SOFTWARE was designed, only in the Licensee’s facilities, by the employees of the Licensee, for research purposes only during the EVALUATION PERIOD.

With respect to electronic documents included with the SOFTWARE, Licensee may make an unlimited number of copies (either in hardcopy or electronic form), provided that such copies shall be used only for internal purposes and are not republished or distributed to any third party.

4 USE OF RESULTS GENERATED BY THE SOFTWARE

Licensee is allowed to use the content generated by the SOFTWARE (“SOFTWARE RESULTS”) only for research purposes during the EVALUATION PERIOD and indefinitely after the expiration of the EVALUATION PERIOD.

Note that any attribution (e.g. SOFTWARE logo or the name of data provider) on the SOFTWARE RESULTS must be retained. The Licensee is not allowed to alter, cancel or fade, after a few seconds, such attribution.

5 PUBLICATIONS

- 5.1 The Parties agree that the Licensee shall be entitled to publish all SOFTWARE RESULTS, subject to notification to SLF (i.e., mobi-dic@slf.ch) at least 30 days prior to the publication date.

6 THIRD PARTY CODE

The SOFTWARE incorporates third-party code and libraries. Use of these components is subject to their respective licenses. A comprehensive list is provided below:

6.1 Ported Algorithms

The following components are modified Python implementations of original algorithms developed for the MATLAB environment. They are utilized under the terms of the **BSD 3-Clause License**.

Code Component	Original Authors & Source
Efficient subpixel image registration by cross correlation	Manuel Guizar-Sicairos, Samuel T. Thurman, and James R. Fienup. Link
Surface fitting using gridfit	John d'Errico. Link

Copyright Notices:

- Efficient subpixel image registration: Copyright (c) 2016, Manuel Guizar-Sicairos, James R. Fienup, University of Rochester. All rights reserved.
- gridfit: Copyright (c) 2016, John D'Errico. All rights reserved.

6.2 External Python Libraries

The SOFTWARE utilizes several open-source libraries distributed under permissive licenses (including BSD, MIT, and Apache 2.0). Major dependencies include:

- **Scientific & Data Analysis:** Includes *NumPy*, *SciPy*, *Pandas*, and *Matplotlib*. These are distributed under the **BSD 3-Clause** and **PSF** licenses.
- **Geospatial Processing:** Includes *GDAL/OGR*, *Rasterio*, *GeoPandas*, *Shapely*, *PyProj*, and *Affine*. These are licensed under **X11/MIT** and **BSD** terms.
- **Machine Learning:** Includes *PyTorch* and *HuggingFace Transformers*. These are licensed under the **BSD 3-Clause** and **Apache 2.0** licenses, respectively.
- **General utilities:** Includes *Pillow (PIL)*, *Requests*, *PyYAML*, *tqdm*, *joblib*, and *psutil*, which are licensed under **MIT**, **Apache 2.0**, or **BSD** terms.

6.3 Copyleft and Integrated Environments

The SOFTWARE included as a QGIS Plugin interface operates within the QGIS environment and utilizes *PyQt/QtWebEngine*, which are distributed under the **GNU General Public License (GPL)**. In accordance with GPL requirements, the source code for the plugin wrapper components is available upon request. This does not extend to the core processing algorithms or trade secrets protected under Section 8 and Section 10 of this Agreement.

6.4 Licensing Terms

The licenses for the third-party libraries and code mentioned above apply strictly to those components. These licenses do not extend to the proprietary core logic or trade secrets of the SOFTWARE developed by SLF. Please refer to the provided source links or the individual package repositories for the full license texts and copyright statements.

7 DELIVERY OF SOFTWARE

The SOFTWARE will be delivered within 1 week from the Effective Date via an access to an appropriate SLF server or via any, by SLF considered, appropriate means (e.g. via e-mail).

8 OBLIGATIONS

During the EVALUATION PERIOD, the Licensee shall not distribute or assign the SOFTWARE or any copy thereof to any third party. Moreover, Licensee may not rent, lease, sell, lend, transfer, redistribute, or sublicense the SOFTWARE to any third party during the EVALUATION PERIOD. Licensee shall not remove or alter any copyright notices on any and all copies of the SOFTWARE.

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Licensee shall not reproduce, modify, adapt or create derivative works based on, or otherwise modify the SOFTWARE, except and only to the extent that such activity is expressly permitted by applicable law despite this limitation.

After the EVALUATION PERIOD, the Licensee should provide feedback to SLF about the experience with the SOFTWARE. This can be in written form (e-mail to mobi-dic@slf.ch) or in form of a meeting (in-person or online). SLF will consider the user experience of the early adopters to further develop the SOFTWARE.

9 MAINTENANCE, SUPPORT, UPGRADES OR NEW RELEASES

SLF has no obligation to provide maintenance, support, upgrades, new releases, enhancements or modifications (hereinafter referred to as "SUPPLEMENTAL CODE") and disclaims all costs associated with service, repair or correction of the SOFTWARE. If any SUPPLEMENTAL CODE is provided by SLF to the Licensee during the term of this Agreement, the SUPPLEMENTAL CODE shall be considered part of the SOFTWARE and is subject to the terms and conditions of this Agreement.

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11 WARRANTY AND LIABILITY

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SLF has not performed any searches or investigations into the existence of any third-party rights that may affect the use of the SOFTWARE. SLF does not give any warranty that the

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Licensee acknowledges that the licensed SOFTWARE are at an early stage of development. Accordingly, efficacy, usefulness and suitability for any purposes of the SOFTWARE cannot be guaranteed and any rights, results, materials, information or other items provided under this Agreement are provided "as is" and without any express or implied warranties, representations or undertakings. As examples, but without limiting the foregoing, SLF does not give any warranty that any product derived from the SOFTWARE is of merchantable or satisfactory quality, is fit for any particular purpose, complies with any sample or description, or is viable, uncontaminated, safe or non-toxic.

SLF shall not be liable for indirect damages, including but not limited to damages resulting from the use of the SOFTWARE and/or the performance and offering of services using the SOFTWARE by the Licensee for which the Licensee may be held responsible by third parties. In the event of a statutory liability of SLF for third party damages, Licensee shall indemnify and hold the SLF harmless against any and all claims of third parties resulting from (a) the negligence or willful misconduct of Licensee under this Agreement; (b) the breach of any of the covenants, warranties and representations made by Licensee under this Agreement. For direct damages incurred by the Licensee in connection with the present licensing, SLF is liable only if they are caused by unlawful intent or gross negligence. Any further liability shall be excluded to the extent legally admissible.

12 TERMS AND TERMINATION

The Agreement shall enter into force at the date of the last signature of the Parties on this Agreement ("Effective Date") and terminates at the end of the EVALUATION PERIOD.

In addition, this Agreement can be terminated with immediate effect if either Party breaches material terms of this Agreement and does not remedy such breach within 30 days after written notice by the other Party. Material breaches are for instance (but not limited to), if Licensee:

- (i) does not make payments due under this Agreement as agreed in Article 2;
- (ii) challenges the validity or the ownership of the SOFTWARE or supports a third party in such a challenge.

Upon termination of this Agreement, Licensee shall immediately refrain from any use or execution of the SOFTWARE. Furthermore, immediately upon termination of this Agreement, Licensee is obliged to delete and cease using, respectively, the SOFTWARE, as well as any further documents and/or materials made available in connection with this Agreement whether confidential or not. The same shall apply for copies made thereof.

Articles 8, 10, 11, 0, 13, 0 and 0, shall survive any termination of this Agreement and shall stay valid thereafter.

13 APPLICABLE LAW AND PLACE OF JURISDICTION

This Agreement is subject to Swiss law, with the exception of those provisions relating to intangible property rights, which are necessarily subject to foreign law. Exclusive jurisdiction for all claims arising from or in connection with the Agreement shall be vested in the courts of the Canton of Zurich.

14 FINAL PROVISIONS

Nothing contained in this Agreement confers any right to use in advertising, publicity, or other promotional activities any name, trade name, trademark, or other designation of either party hereto unless mutually agreed in writing.

The Parties may acknowledge and communicate the existence of this Agreement and the extent of the license grant in Article 3 to third parties but shall not disclose the financial terms

of this Agreement to third parties without the prior written consent of the other Party, except where one Party is required by law to do so. Licensee may disclose this Agreement and its terms to advisors (including financial advisors, attorneys and accountants), actual or potential acquisition partners or private investors, and others on a need-to-know basis, in each case under the confidentiality provisions. SLF may disclose this Agreement and its terms to its superior entities as required by SLF regulations.

The Parties will provide each other promptly, to the extent possible and reasonable, with any mutual assistance required to enable the Parties to exercise the rights which are conferred on them by this Agreement. In particular, they will provide the signatures required to register intellectual property rights.

During the EVALUATION PERIOD, Licensee may not assign this Agreement and/or rights arising from this Agreement without the prior written consent of SLF. Should any provision of this Agreement be invalid or unenforceable or should the Agreement contain an omission, the remaining provisions shall remain valid. In the place of an invalid provision, a valid provision is presumed to be agreed upon by the Parties which comes closest to the one actually agreed upon; the same shall apply in case of an omission.

This Agreement embodies the entire understanding of the Parties and supersedes all previous communications, representations or understandings, either oral or written, between the Parties relating to the subject matter hereof. No amendment or modification of this Agreement shall be valid or binding on the Parties unless made in writing and signed on behalf of each Party. The Parties shall not infer from this Agreement any other rights than those that are explicitly stated herein.

15 SIGNATURE

This Agreement must be signed by all Parties. All signatures may be inscribed together on the same document or inscribed individually on separate documents that have the same content. Scanned signatures or signatures executed by electronic signature (QES according to ZertES (SR 943.03) or uncertified such as DocuSign, AdobeSign, etc.) shall have the same force and effect as a handwritten signature. Neither Party shall deny the legal effect or enforceability of this Agreement solely because it is in electronic form or because a scanned signature or an electronic signature was used in its formation.

Signed by the duly authorized representatives of the Parties:

Signature: _____
By: Dr. Yves Bühler
Title: Group Leader, Alpine Remote Sensing
Date: _____

Signature: _____
By: PD Dr. Andrea Manconi
Title: SLF Scientific Staff, responsible of the MOBI-DIC project
Date: _____

NN:
Signature: _____
By: _____
Title: _____
Date: _____